

		In addition, Plaintiff has failed to allege neglect under the statute. Rather, Plaintiff alleges that Defendants delayed his brain surgery. (FAC, ¶¶67, 68.) Failing to timely secure or undertake brain surgery is not neglect; it is a “basic need” of the type an able-bodied and fully competent adult would ordinarily be capable of managing on his or her own. This is the second time that Plaintiffs have attempted to unsuccessfully plead an elder abuse claim. Plaintiffs do not allege anything beyond a single day of treatment at the Emergency Department of a hospital. Under these facts, it does not seem likely that Plaintiff can plead a valid elder abuse claim. Therefore, the Demurrers are sustained without leave to amend. he Motions to strike attorney’s fees under Welfare and Institutions Code section 15657 as to the sixth cause of action are now moot. Moving Defendants shall serve notice. Defendants shall answer the remainder of the FAC within 15 days.
55	<i>Knutsen vs. Knutsen</i>	The demurrer of defendant Darrell Wade Knutsen, individually and as co-trustee of the 2004 Knutsen Family Trust, to the complaint of plaintiff Julianne Marie Knutsen, individually and as co-trustee of the 2004 Knutsen Family Trust is continued to November 20, 2026, at 10:00 AM in Department C-21 so that Plaintiff may respond to the new arguments raised by Defendant in his reply. [ROA #14, 2.]